

This Deed of Trust, Made this 31st day of December, 1930
 between Leland D. Houk and Elsie W. Houk, his wife.
Security Title Insurance and Guarantee Company, a corporation, herein called TRUSTOR,
 herein called TRUSTEE, and The First National Bank of Hemet, a corporation,
 herein called BENEFICIARY.

Witnesseth: That Trustor hereby GRANTS to TRUSTEE, IN TRUST, WITH POWER OF SALE, all that property in the County of Riverside, State of California, described as:

Lot Eight (8) of Webber and Griffin's Subdivision of Tract Eighteen (18) of the Rancho San Jacinto Viejo, as shown by Survey, Book 1, page 4 on file in the office of the County Recorder of San Diego, California.

Executed subject to a first trust deed in favor of Harry D. Pyle, for \$3000.00 due March 2, 1931, same being of record against the above described property.

FOR THE PURPOSE OF SECURING:

FIRST: Payment of the indebtedness evidenced by two promissory note (and any renewal or extension thereof) substantially in form as follows:

\$1264.50
 Hemet, California, December 31st, 1930

In installments as herein stated, after date, for value received, I, we or either of us, promise to pay The First National Bank of Hemet, California, or order, at said Bank in Hemet, the sum of Twelve Hundred Sixty four and 50/100 dollars, with interest at the rate of 8 per cent. per annum from date until paid, interest payable quarterly and if not so paid, to be compounded quarterly and bear the same rate of interest as the principal; and should the interest not be paid when due, then the whole sum of principal and interest shall become immediately due and payable and may be charged to the account of said Bank of either the principal maker, or sureties on said note, at the option of the holder of this Note.

Should an attorney be employed to collect, or should suit be commenced to enforce the payment of this Note, I, we or either of us agree to pay a reasonable sum additional as attorney's fees. Principal and interest payable in gold coin of the United States. The makers and endorsers of this note hereby waive diligence, demand, protest and notice.

I, we, or either of us hereby deposit with said Bank as collateral security for the payment of this or any other liability or liabilities of makers or sureties to said Bank, due or to become due, or that may be hereafter contracted; the following property, viz:

Note \$560.00, dated December 30, 1930, executed by L. C. Darling in favor of E. W. Houk, 8% interest per annum, principal due in six months from date, said note duly assigned to the First National Bank of Hemet, by said E. W. Houk, Warehouse Receipt No. -

the market value of which is now \$- with this condition, viz: That the FIRST NATIONAL BANK OF HEMET, has the right to call for such additional security as it may deem proper, and, on failure to respond forthwith to such call, this obligation shall immediately thereupon become due and payable; and on the non-performance of this promise, or on the non-payment of any liability or liabilities above mentioned, the said Bank, its President or Cashier, or assigns, is and are hereby given full power and authority to sell, assign and deliver, or collect the whole or any part of the above named securities, or any substitute therefor, or any addition thereto, at public or private sale, at any time or times hereafter, without any demand, advertisement or notice--such demand, advertisement and notice being hereby expressly waived; and upon such sale the said FIRST NATIONAL BANK OF HEMET, or the holder hereof, may become the purchaser of the whole or any part of such securities, discharged from any right of redemption; and after deducting all legal or other costs and expenses for collection, sale and delivery, may apply the residue of the proceeds of such collection, sale or sales, to pay any, either or all of said liabilities as said First National Bank of Hemet, or its assigns, shall deem proper, returning the overplus to the undersigned. And the undersigned agrees to pay the holder hereof any deficiency upon demand. Principal payable in installments as follows: \$264.50 or more in six days from date and \$1000.00 in six months from date. This note is secured by a Deed of Trust to Security Title Insurance and Guarantee Company, a corporation.

(Signed) Leland D. Houk
 (Signed) Elsie W. Houk
 (Signed) E. W. Houk

SECOND. Payment and/or performance of every obligation, covenant, promise or agreement herein contained.
To Have and to Hold said property upon the following express Trusts, to-wit:

A. Trustor promises and agrees, during continuance of these Trusts:

1. For the purpose of protecting and preserving the security of this Deed of Trust: (a) to properly use for and keep said property in good condition and repair; (b) not to remove or demolish any building thereon; (c) to complete in good and workmanlike manner any building which may be constructed thereon, and to pay when due all claims for labor performed and materials furnished therefor; (d) to comply with all laws, ordinances and regulations requiring any alterations or improvements to be made thereon; (e) not to commit or permit any waste or deterioration thereof; (f) not to commit, suffer or permit any act to be done in or upon said property in violation of any law or ordinance; (g) to erect, irrigate, fertilize, runigate, prune and/or do any other act or acts, all in a timely and proper manner, which, from the character or use of said property, may be reasonably necessary to protect and preserve said security, the specific enumerations herein not excluding the general.

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2. To provide, maintain and deliver to Beneficiary fire insurance satisfactory to and with loss payable to Beneficiary. The amount collected under any fire insurance policy shall be credited first to accrued interest; next, to expenditures hereunder and any remainder upon the principal, and interest shall thereupon cease upon the amount so credited upon principal; provided, however, that at option of Beneficiary, the entire amount so collected or any part thereof may be released to Trustor, without liability upon Trustee for such release.

3. To appear in and defend any action or proceeding purporting to affect the security of this Deed of Trust, the interests of Beneficiary, or the rights, power and duties of Trustee hereunder; and to pay all costs and expenses, including cost of evidence of title and attorney's fees in a reasonable sum, in any such action or proceeding in which Beneficiary and/or Trustee may appear.

4. To pay before default or delinquency: (a) all taxes, assessments or incumbrances (including any debt secured by Deed of Trust), which appear to be prior liens or charges upon said property or any part thereof, including assessments on appurtenant water stock, and any accrued interest, cost or penalty thereon; (b) all costs, fees and expenses of these Trusts, including cost of evidence of title and Trustee's fees in connection with sale, whether completed or not, which amounts shall become due upon delivery to Trustee of Declaration of Default and Demand for Sale, as hereinafter provided.

5. To pay within thirty days after expenditure, without demand all sums expended by Trustee or Beneficiary under the terms hereof, with interest from date of expenditure at the rate of ten per cent per annum.

B. Should Trustor fail or refuse to make any payment or do any act, which he is obligated hereunder to make or do, at the time and in the manner herein provided, then Trustee and/or Beneficiary, each in his sole discretion, may without notice to or demand upon Trustor and without releasing Trustor from any obligation hereof:

1. Make or do the same in such manner and to such extent as may be deemed necessary to protect the security of this Deed of Trust, either Trustee or Beneficiary being authorized to enter upon and take possession of said property for such purpose.

2. Commence, appear in or defend any action or proceeding affecting or purporting to affect the security of this Deed of Trust, the interests of Beneficiary or the rights, powers and duties of Trustee hereunder, whether brought by or against Trustor, Trustee or Beneficiary; or

3. Pay, purchase, contest or compromise any prior claim, debt, lien, charge or incumbrance which in the judgment of either may affect or appear to affect the security of this Deed of Trust, the interests of Beneficiary or the rights, powers and duties of Trustee hereunder.

Provided that neither Trustee nor Beneficiary, shall be under any obligation to make any of the payments or do any of the acts above mentioned, but, upon election of either or both so to do, employment of an attorney is authorized and payment of the fees of such attorney in a reasonable sum is hereby secured.

C. Trustee shall be under no obligation to notify any party hereto of any action or proceeding of any kind in which Trustor, Beneficiary and/or Trustee shall be named as defendant, unless brought by Trustee.

D. Acceptance by Beneficiary of any sum in payment of any indebtedness secured hereby, after the date when the same is due, shall not constitute a waiver of the right either to require prompt payment, when due, of all other sums so secured or to declare default as herein provided for failure so to pay.

E. Trustee may, at any time, or from time to time, without liability therefor and without notice, upon written request of Beneficiary and presentation of this Deed of Trust and the note secured hereby for endorsement, and without affecting the personal liability of any person for payment of the indebtedness secured hereby or the effect of this Deed of Trust upon the remainder of said property:

1. Reconvey any part of said property;
2. Consent in writing to the making of any map or plat thereof; or
3. Join in granting any easement thereon.

F. Upon payment of all sums secured hereby and surrender to Trustee, for cancellation, of this Deed of Trust and the note secured hereby, Trustor upon receipt from Beneficiary of a written request reciting the fact of such payment and surrender, shall reconvey, without warranty, the estate then held by Trustee and the grantees in such reconveyance may be described in general terms as "the person or persons legally entitled thereto," and Trustee is authorized to retain this Deed of Trust and such note. The recitals in such reconveyance of any matters or facts shall be conclusive proof against all persons of the truthfulness thereof.

G. 1. Should breach or default be made by Trustor in payment of any indebtedness and/or in performance of any obligation, covenant, promise or agreement herein mentioned, then Beneficiary may declare all sums secured hereby immediately due, and in such case shall execute and deliver to Trustee a written Declaration of Default and Demand for Sale and shall surrender to Trustee this Deed of Trust, the note and receipts or other documents evidencing any expenditure secured hereby. Thereafter there shall be recorded in the office of the recorder of the county or counties wherein said real property or some part thereof is situated, a notice of such breach or default and of election to sell or cause to be sold the herein described property to satisfy the obligations hereof.

2. After three months shall have elapsed following such recording of said notice, Trustee, without demand on Trustor, shall sell said property as herein provided, having first given notice of the time and place of such sale in the manner and for a time not less than that required by the laws of the State of California for sales of real property under Deeds of Trust.

3. Trustee may postpone sale of all or any portion, of said property by public announcement at the time fixed by said notice of sale, and may thereafter postpone said sale from time to time by public announcement at the time fixed by the preceding postponement; and without further notice it may make such sale at the time to which the same shall be so postponed, provided, however, that the sale or any postponement thereof must be made at the place fixed by the original notice of sale.

4. At the time of sale so fixed, Trustee may sell the property so advertised, or any part thereof, either as a whole or in separate parcels at its sole discretion, at public auction, to the highest bidder for cash in United States gold coin, all payable at time of sale, and after any such sale and the payment made, shall execute and deliver to such purchaser a deed or deeds conveying the property so sold, but without covenant or warranty, express or implied, regarding title, possession or incumbrances. Trustor hereby agrees to surrender immediately and without demand possession of said property to such purchaser. The recitals in such deed or deeds of any matters or facts affecting the regularity or validity of said sale shall be conclusive proof of the truthfulness thereof and such deed or deeds shall be conclusive against all persons as to all matters or facts therein recited. Trustee, Beneficiary, any person on behalf of either, or any other person, may purchase at such sale.

H. Trustee shall apply the proceeds of any such sale to payment of:

1. (a) Expenses of sale; (b) all costs, fees, charges and expenses of Trustee and of these Trusts, including cost of evidence of title and Trustee's fee in connection with sale.
2. All sums expended under the terms hereof, not then repaid, with accrued interest at the rate of ten per cent per annum.
3. Accrued interest on said note.
4. Unpaid principal of said note; or if more than one, the unpaid principal thereof pro rata and without preference or priority; and
5. The remainder if any to the person or persons legally entitled thereto, upon proof of such right.

I. This Deed of Trust in all its parts applies to, inures to the benefit of and binds all parties hereto, their heirs, legatees, devisees, administrators, executors, successors and assigns.

J. Trustee accepts these Trusts when this Deed of Trust, duly executed and acknowledged, is made a public record as provided by law.

In this Deed of Trust, whenever the context so requires, the masculine gender includes the feminine and/or neuter, and the singular number includes the plural.

Witness the hand of Trustor, the day and year first above written.

Leland D. Houk

Elsie W. Houk

State of California,

County of Riverside

On this 31st day of December, 1930, before me,

Jean E. Lee

a Notary Public in and for said County,

personally appeared Leland D. Houk and Elsie W. Houk, his wife,



known to me to be the persons whose names are subscribed to the within instrument, and acknowledged that they executed the same.

WITNESS my hand and official seal.

Jean E. Lee

Notary Public in and for said County and State.

Received for Record Jan 8 1931 at 30 min. past 8 o'clock A.M. at request of Security Title Ins. & Guar. Co. Copied in Book No. 1 Official Records, page 13, et seq. Records of Riverside County, California.

Fees, \$ 3.10

JACK A. ROSS, County Recorder

Occupied: Copyist A. Lamin Comparer E. Kettering

Deputy Recorder

Endorsement

No. 534